

Sadananda Naik vs State Of Karnataka on 11 December, 2020

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Bench: H.B.Prabhakara Sastry

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 11TH DAY OF DECEMBER, 2020

BEFORE

THE HON'BLE Dr. JUSTICE H.B.PRABHAKARA SASTRY

CRIMINAL REVISION PETITION No.567 OF 2011

BETWEEN:

Sadananda Naik
S/o. Mohana Naik
A/a 30 years,
Dondabail House,
Kervase Village,
Karkala Taluk.

.. Petitioner

(By Smt. P.V. Kalpana, Amicus Curiae)

AND:

State of Karnataka
By Mangalore Rural Police
Rep. by SPP.

.. Respondent

(By Sri. V.M. Sheelvant, State Public Prosecutor &
Sri Vinayaka V.S. HCGP)

This Criminal Revision Petition is filed under Section 397 read with Section 401 of the Code of Criminal Procedure, 1973, praying to call for the records pertaining to C.C.No.5099/2007 on the file of J.M.F.C. (III) Court, Mangalore D.K., on the file of Principal Sessions Judge, D.K. Mangalore in CrI.Appl No.246/2009; set aside the judgment dated 29-03-2011 in CrI.Appeal No246/2009 passed by the
CrI.R.P.No.567/2011

Principal Sessions Judge, D.K., Mangalore, confirming the judgment of the J.M.F.C. (III Court), Mangalore D.K. in C.C.No.5099/2007, etc.

This Criminal Revision Petition having been heard through Physical Hearing/Video Conferencing Hearing at both Bengaluru & Dharwad Benches, and reserved for Judgment on 05-11-2020 at Dharwad Bench, coming on for pronouncement at Dharwad Bench through Video Conference this day, the Court made the following:

ORDER

The present petitioner who was tried by the Court of J.M.F.C. (III Court), Mangalore, D.K.,(hereinafter for brevity referred to as the "Trial Court") in C.C.No.5099/2007 for the offences punishable under Sections 498(A) and 504 of the Indian Penal Code, 1860 (hereinafter for brevity referred to as "IPC") was convicted for the offence punishable under Section 498A of IPC vide its judgment dated 24-04-2009 and it sentenced him accordingly.

Challenging the said judgment of conviction and order on sentence, the accused preferred a criminal appeal in Criminal Appeal No.246/2009 in the Court of the learned Principal Sessions Judge, Dakshina Kannada, Mangalore (hereinafter for brevity referred to as the "Sessions Judge's Court") which also by its judgment dated 29-03-2011, while dismissing the appeal, confirmed the judgment of conviction and order on sentence passed by the Trial Court. Aggrieved by the same, the accused has preferred this revision petition.

2. The summary of the case of the prosecution in the Trial Court was that, the complainant one Smt. Shobha, a resident of Shivanagar, Kodakal, Alape Village, Mangalore Taluk, claims that she was married to the accused on 03-02-2006. Though at the time of her marriage, she was working in a private hospital at Mangaluru, however, due to the pressure by her husband, she left the job. Some time after her marriage, the accused started complaining that she was not good to look at and that he would undergo another marriage. Thus he started subjecting her to mental cruelty. On 16-05-2007, while she was at home, at about 5:00 p.m., the accused went there, abused her in filthy language and challenged her to take any action if she has got guts and that he would be undergoing a second marriage. The complainant has further stated that, thereafter she learnt that he had undergone another marriage. With that, she filed a complaint with the respondent Police on the next day, i.e. on 17-05-2005.

3. After investigation, a charge sheet was filed against the accused for the offences punishable under Sections 498A and 504 of IPC. Since the accused pleaded not guilty, a trial was held where the prosecution, in order to prove its case, examined eight witnesses from PW-1 to PW-8 and got marked documents from Exs.P-1 to P-11(a). From the accused' side, no evidence was led except marking two documents at Exs.D-1 and D-2.

4. After hearing both side, the Trial Court by its impugned judgment dated 24-04-2009 convicted the accused for the offence punishable under Section 498-A of IPC and sentenced him accordingly. As observed above, the same was challenged by the accused in Criminal Appeal No.246/2009 which also came to be dismissed by the learned Sessions Judge's Court.

5. The Trial Court and Sessions Judge's Court's records were called for and the same are placed before this Court.

6. In view of the fact that in spite of granting sufficient opportunity, the learned counsel for the revision petitioner did not appear and proceeded further in this matter, this Court, by its detailed order dated 20-08-2020, appointed an Amicus Curiae for the revision petitioner.

7. Heard the arguments from both side.

8. Learned Amicus Curiae for the revision petitioner in her arguments disputed the alleged marital relationship between the complainant and the accused. According to her, there was no marriage that was solemnized between the complainant and the accused, as such, in the absence of any marital relationship between the parties, Section 498A of the IPC would not be attracted. She further contended that the alleged Marriage Certificate at Ex.P-2 is also not a valid Marriage Certificate in the eye of law for the reason that, the alleged marriage has not been registered under the Karnataka Marriages (Registration and Miscellaneous Provisions) Act, 1976 (hereinafter for brevity referred to as the "KMRM Act"). On the contrary, the alleged marriage was registered under the Registration of Hindu Marriages (Karnataka) Rules, 1966 (hereinafter for brevity referred to as the "RHMK Rules").

She further submitted that even if it is assumed that the Marriage Certificate is valid in the eye of law, still, the evidence would go to show that the accused had never submitted the Memorandum of Marriage and had not appeared before the Registrar of Marriages, as such, the alleged Marriage Certificate which is at Ex.P-2 is proved to be a bogus Certificate.

9. Learned State Public Prosecutor and learned High Court Government Pleader addressed their arguments for the respondent - State.

Learned State Public Prosecutor in his argument submitted that by virtue of the power conferred upon the State under Section 8 of the Hindu Marriage Act, 1955 (hereinafter for brevity referred to as the "H.M. Act), the State had framed the Rules as per the H.M. Rules. Thus, the marriage registered under the said H.M. Act and Rules cannot be held as bad in the eye of law, merely because, subsequently, the State has enacted KMRM Act.

He also submitted that KMRM Act is shown to be applicable to all, whereas, the H.M. Act since applies only for Hindus, a marriage registered under the H.M. Act subsequent to coming into force of KMRM Act would not lose its validity. Thus, both the Acts hold the field simultaneously.

He also submitted that assuming that the Marriage Certificate at Ex.P-2 is not a valid one in the eye of law, still, the fact remains that the prosecution has proved the marital relationship between the

accused and the complainant as husband and wife through the evidence of the prosecution witnesses.

In his support, he also relied upon the judgment of the Hon'ble Apex Court in the case of State of A.P. and others Vs. McDowell & Co. and others reported in (1996) 3 Supreme Court Cases 709 and in the case of Central Bank of India Vs. State of Kerala and others reported in (2009) 4 Supreme Court Cases 94.

10. In her reply argument, learned Amicus Curiae further submitted that the complainant has shown that she was already married prior to her alleged marriage with the accused and that she has not placed any evidence to show that she has become a widow or a divorcee. On the other hand, she has misled the Registration Authority declaring that she was unmarried as on the date of registration of her alleged marriage with the accused. She further contended that the prosecution has utterly failed to prove the alleged cruelty said to have been meted out by the accused against the complainant.

11. In the light of the above arguments, the only point that arise for my consideration in this revision petition is:

"Whether the judgment and order passed by the learned Session's Judge's Court, confirming the judgment of conviction and order on sentence passed by the Trial Court, suffers with any illegality, impropriety, warranting interference at the hands of this Court?"

12. The primary argument of the learned Amicus Curiae for the revision petitioner is that, there is no marital relationship between the petitioner and the complainant. The said defence of non-existence of marital relationship was taken by the accused in the Trial Court also. Since it is the case of the prosecution that the complainant/victim is the wife of the accused, the burden is upon the prosecution to prove the alleged marital relationship.

13. In order to prove the same, the prosecution has mainly relied upon the evidence of PW-1, PW-2, PW-3, PW-4, PW-5 and PW-6.

14. PW-1 - Shobha is the complainant, who, in her Examination-in-chief has stated that, her marriage with the accused took place on 03-02-2006 in Suryanarayana Temple at a place called Maroli, in the presence of her parents and the people from the accused' side and as per the customs, the marriage was performed, as such, the accused has been her husband. She also stated that after her marriage, she started living with the accused in a rented house at Yakkur. At the time of her marriage, she was working as a staff at Tejaswini Hospital. She also alleged that the golden ornaments which she was possessing and owning were taken away by her husband, i.e. the accused and he has pledged them for some money and spent the said money for himself. He has also misused three of her cheques and obtained loan on the pretext of performing his sister's marriage. She also stated that after the marriage, the accused also made her to leave the job.

In her cross-examination, she stated that she has got two daughters and as on the date of her evidence, which was in September 2008, the elder daughter was aged 18 years and younger daughter was of 17 years. She further stated that at the time of her marriage with the accused, she was a widow having lost her first husband in a motor vehicle accident at Mumbai, however, she stated that she had no document to prove the death of her first husband. She has further given description as to the gathering that was assembled in her marriage with the accused, stating that about fifty persons have attended the said marriage. She stated that six months after her marriage with the accused, the said marriage was registered and they themselves have got the said marriage registered. For the said registration, one of the relative of the accused and her father and uncle were the witnesses. She denied the suggestion that she was not married to the accused and there is no marital relationship between them. She also denied a suggestion that since the accused was very intimate to her, she, in order to prevent him from marrying any other lady, has lodged a false complaint against him. She got produced and marked marriage invitation card solemnized between herself and the accused at Ex.P-1, certificate of registration of marriage at Ex.P-2; her complaint against the accused said to be given on 17-05-2007 at Ex.P-3, the scene of offence panchanama said to have been drawn by the Police at Ex.P-4; seizure panchanama drawn by the Police seizing the marriage invitation card, marriage registration certificate and three photographs of the complainant and the accused, was marked at Ex.P-5. She has identified those three photographs at Exhibits P-6, P-7 and P-8.

15. PW-2 - Umesh Kotian is the father of PW-1, who also has stated that the marriage of PW-1 with the accused has taken place on 03-02-2006 in Sri Ganesh Kripa, Near Shri Soorya Narayana Temple at Maroli. The marriage invitation card was printed in that regard and was distributed among friends and relatives. According to him, about hundred people had gathered for the said marriage.

This witness also in his cross-examination stated that his daughter i.e. PW-1 was a widow at the time of marriage with the accused and that she had got two daughters from her first marriage and those two daughters with their names Savitha and Akshata respectively are grown up girls aged about 19 years and 18 years. He also stated that the first husband of the complainant (PW-1) died in a motor car accident at Mumbai and his name was Vijay. He has given details about the said Vijay as to his nature and place of work. He has also identified the document at Ex.P-1 as the marriage invitation card of the accused with the complainant. In his cross-examination he has given more details about the marriage between the accused and the complainant. He has also stated that Archaka of the temple has performed the marriage between them and that the temple authorities have obtained their signature in a Book maintained by them regarding the marriage taken place in their premises. The witness also stated that a photograph of the marriage was also taken by a boy by name Gopal who attended the marriage. He stated that the said marriage was also registered in the office of the Sub-Registrar, however, he did not attend the Sub-Registrar's office on the date of registration of the marriage.

16. PW-3 - Purushotham, who claims himself to be a neighbour of PW-2 has stated that the accused is the husband of PW-1 and that their marriage was performed in Suryanarayana Temple Hall at Maroli village. Though he has stated that he did not attend the said marriage, but, has stated that after the said marriage, the couple were residing in a place called Mugeru near Pumpwell at

Mangaluru in a rented house. However, he has stated that he does not know how the complainant was being treated by her husband. Since the witness did not speak about the alleged cruelty said to have been meted to the complainant by the accused, the witness was treated as hostile at the request of the prosecution and was permitted to be cross-examined. However, in his cross-examination, he adhered to his original version.

17. PW-4 Krishna Naika claiming himself to be the neighbour of PW-2 has stated that accused married the complainant about three years back. He has also stated that on 17.5.2007, the police conducted a scene of offence panchanama as per Ex.P-4 in the house of PW-2, to which, he has put his signature. He has stated that the said mahazar is with respect to an alleged cruelty said to have been meted to the complainant by her husband.

18. PW-5 Shekar claiming that he knows PW-1 and PW-2, has stated that the accused is the husband of the complainant and that he too was one of the pancha to the panchanamas at Exs.P-4 and P-5. He has stated that while drawing Ex.P-5 on 24.5.2007, the complainant produced three photographs, marriage invitation card and a copy of Registration, which the police seized under the panchanama. He has identified those documents at Exs.P-2 and P-6 to P-9.

In his cross-examination he has given some more details about the panchanamas.

19. PW-6 Devadas also claims that he is acquainted with PWs.1 and 2 and that accused is the husband of the complainant. He too has stated that Ex.P-5 was drawn in his presence and the articles shown therein were seized in his presence.

In his cross-examination, he has stated that, he attended the marriage between the complainant and the accused and he has given more details about the marriage.

20. PW-7 the Assistant Sub-Inspector of complainant-Police Station has stated that on 17.5.2007, the complainant appeared before her and lodged a written complaint as per Ex.P-3. Based on that, she prepared FIR as per Ex.P-11. On the same day, she proceeded to the scene of offence and drew a panchanama as per Ex.P-4 and recorded the statements of CWs.2 to 5 and then handed over further investigation to the Police Sub-Inspector.

The denial suggestions made to her in her cross- examination were not admitted as true by her.

21. PW-8 Prakash, the Police Sub-Inspector of the complainant-Police Station has stated that he took the further investigation in the matter from PW-7 on 24.5.2007 and on the same day, seized marriage invitation card, Registration Certificate and three photographs produced by the complainant in the station by drawing a panchanama in the presence of panchas as per Ex.P-5. He has identified those documents at Exs.P-1, P-2 and P-6 to P-8. He has also stated that on 13.6.2007, his staff produced the accused before him and after completing the arrest formalities, he produced the accused before the Court. He also recorded further statement of the complainant on 14.6.2007 and after completing the investigation, has filed the charge sheet in the Court.

The denial suggestions made to him in his cross- examination were not admitted as true by him.

22. The evidence of PW-1 shows that she has specifically stated that she was given in marriage to the accused on 3.2.2006, at Suryanarayana Temple in Maroli, in the presence of her parents and other relatives as per the custom. She has given more details about the marriage and rituals performed therein in her evidence. Though she was subjected to a detailed cross-examination, wherein it was extracted from her that she was earlier married to one Sri Vijay and that Sri Vijay died in a road traffic accident at Mumbai, but, she adhered to her statement that thereafter as a widow, she had married the present accused on 3.2.2006. Though several attempts were made in her cross-examination to shaken her evidence from the accused side, the same could not be achieved. On the other hand, she has given some more details about her marital life with the accused and also places where they were residing and leading marital life after the marriage. The denial suggestions made to her were not admitted as true by her.

23. The said evidence of PW-1 is further corroborated by the evidence of PW-2. As observed above, he has also specifically stated that he had performed the marriage of his daughter with accused at Suryanarayana Temple in Maroli. In his cross- examination, he too has stated that his daughter was a widow prior to her marriage with the accused and that her first husband by name Vijay died due to road traffic accident in Mumbai. He has given further details that the said Vijay was working in garages in Mumbai. Merely because the death certificate of said Vijay is not produced either by PW-1 or PW-2, by that itself, it cannot be held that the first husband-Vijay was not dead, that too, particularly when the question involved is not the alleged death of said Vijay, but, it is the alleged marriage of PW-1 with the accused. Even PW-2 also has identified the marriage invitation card, Registration Certificate and the photographs. Nothing in favour of the accused could be elicited in his cross- examination.

24. Similar is the evidence of PW-6. Though primarily he was as a pancha, but, during his cross-examination from the defence side, he also made it clear that, himself had attended the marriage between the accused and the complainant. He too has identified the marriage photographs at Exs.P-6 to P-8. Further the evidence of PW-6 and evidence of PW-8 - the Investigating Officer, further corroborates with the marriage invitation card, Registration Certificate and photographs which were seized by drawing a panchanama. Thus, the marriage of the complainant with the accused is corroborated by the evidence of PW-2 and PW-6, apart from PW-1.

25. According to the case of the prosecution, the marriage of the complainant with the accused was further registered before the Marriage Officer at Mangaluru Taluk. In that regard, a Certificate of Registration of Marriage, issued in Form II-A under H.M.Act, was also produced by the prosecution and got it marked as Ex.P-2. Learned Amicus Curiae for the petitioner in her argument vehemently argued that the alleged Marriage Certificate at Ex.P-2 would not have any recognition in the eye of law in view of Section 5 of the KMRM Act. According to the learned Amicus Curiae, after submission of a memorandum of marriage under Section 5 of the said Act, the registration of the marriage and issuance of the Certificate of Marriage would be as per the Karnataka Marriages (Registration and Miscellaneous Provisions) Rules, 2006. As such, since there is a Special Act for registration of marriage as per Section 31 of KMRM Act, the registration of marriage for Hindus contracted in the

State would have to be registered compulsorily only under the said KMRM Act, but, not under H.M.Act.

Per contra, learned State Public Prosecutor who appeared for learned High Court Government Pleader in the matter in his argument submitted that, merely because the KMRM Act has come into force, it has not repealed or overtaken the provisions of registration of marriages under H.M.Act, however, they run parallelly. While drawing the attention of this Court to Section 8 of KMRM Act, learned State Public Prosecutor further submitted that, as provided under the said Act, merely because a marriage is not registered under KMRM Act, the marriage does not become invalid. Submitting that neither there is any express repeal nor there is any implied repeal provisions pertaining to registration of marriages under H.M.Act by the Enactment of the KMRM Act, learned State Public Prosecutor also relied upon a judgment of Hon'ble Apex Court in Lal Shah Baba Dargah Trust -vs- Magnum Developers and others and connected matters, reported in AIR 2016 SC 381.

26. The Hindu Marriage Act, 1955, provides for registration of Hindu marriages under Section 8, which reads as below :

"8. Registration of Hindu Marriages.- (1) For the purpose of facilitating the proof of Hindu Marriages, the State Government may make rules providing that the parties to any such marriage may have the particulars relating to their marriage entered in such manner and subject to such conditions as may be prescribed in a Hindu Marriage Register kept for the purpose.

(2) Notwithstanding anything contained in sub-section (1), the State Government may, if it is of opinion that it is necessary or expedient so to do, provide that the entering of the particulars referred to in sub-section (1) shall be compulsory in the State or in any part thereof, whether in all cases or in such cases as may be specified, and where any such direction has been issued, any person contravening any rule made in this behalf shall be punishable with fine which may extend to twenty-five rupees.

(3) All rules made under this section shall be laid before the State Legislature, as soon as may be, after they are made.

(4) The Hindu Marriage Register shall at all reasonable times be open for inspection and shall be admissible as evidence of the statements therein contained and certified extracts therefrom shall, on application, be given by the Registrar on payment to him of the prescribed fee.

(5) Notwithstanding anything contained in this section, the validity of any Hindu Marriage shall in no way be affected by the omission to make the entry."

By virtue of the said Section 8 of H.M.Act, the Karnataka State promulgated the Registration of Hindu Marriages (Karnataka) Rules, 1966, which prescribes procedural aspects for registration of

marriages under Rule 4, which reads as below :

"4. Registration of Marriages.- (1) The parties to a Hindu marriage may have the particulars relating to their marriage entered in a register and prepare and sign a memorandum in Form I in duplicate and either deliver them in person or send them by registered post to the Registrar of the area in which the marriage took place or in which the bridegroom or the bride ordinarily reside.

(2) Every such memorandum shall be delivered or sent along with an application in Form I-A. (3) The memorandum and its duplicate shall be signed by three witnesses.

(4) On receipt of the memorandum and the duplicate the Registrar shall make an endorsement in Form II on the reverse and then paste the memorandum in the Register which shall be in the form of a paste book consisting of blank butts serially numbered, beginning with figure I. (5) On filing the memorandum along with the application and completion of registration, the Registrar shall immediately issue a certificate of registration of Marriage in Form II-A and communicate it either to the presenter in person or send it by post to the parties to the marriage."

27. As can be seen from Section 8(2) of H.M.Act, it also confers powers on the State Government for making it compulsory for entering all the particulars referred to in sub-section (1) of Section 8 of H.M.Act in the State or in any part thereof. It is thereafter, the Karnataka State has promulgated KMRM Act, whereunder, Section 3 says that every marriage contracted in the State on or after the appointed day shall be registered in the manner provided in this Act. Learned State Public Prosecutor submits that the said KMRM Act has come into force duly appointing a day which is much earlier to the alleged registration of marriage in the case on hand as per Ex.P-2.

28. The KMRM Act speaks about registration of marriage in Section 5 of the Act, which reads as below :

" 5. Memorandum of marriages.- (1) The parties to a marriage shall, prepare and sign a memorandum in the form specified in Schedule A and deliver or send by registered post the said memorandum in duplicate to the Registrar of the area in which the marriage was contracted, within a period of thirty days from the date of marriage.

(2) The memorandum shall be accompanied by the prescribed fee in the form of court fee stamps and shall be attested by a prescribed person.

(3) On receipt of the memorandum, the Registrar shall file the same, enter the

particulars thereof in the register, send the duplicate copy thereof to the Registrar General and issue a marriage certificate in such form and manner as may be prescribed."

Section 31 of the very same Act reads as below:

"31. Act to override other laws.- The provisions of this Act and the rules made thereunder shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or any custom, usage, contract or decree or order of the Court or other authority."

It is taking the shelter of Section 31 of the KMRM Act, learned Amicus Curiae for the petitioner vehemently submitted that though there is no express repealing of provision for registration of Hindu marriages in Karnataka under H.M.Act, but, there is implied repealing of the same.

29. Admittedly, there is no express repealing of the applicability of the registration of marriages under Section 8 of H.M.Act in Karnataka nor there is any repealing of the RHMK Rules. Section 31 of KMRM Act though speaks about overriding effect of the Act upon any other Law for the time being in force, but, it cannot be forgotten that the H.M.Act is a Central Act (No.25 of 1955).

30. The Hon'ble Apex Court in Magnum Developers's case (supra), at Paragraph Nos.30 and 31 has observed as below :

" 30 : It is well settled that in case where there is a repealing clause to a particular Act, it is a case of express repeal, but in a case where doctrine of implied repeal is to be applied, the matter will have to be determined by taking into account the exact meaning and scope of the words used in the repealing clause. It is equally well settled that the implied repeal is not readily inferred and the mere provision of an additional remedy by a new Act does not take away an existing remedy. While applying the principle of implied repeal, one has to see whether apparently inconsistent provisions have been repealed and reenacted.

31: The implied repeal of an earlier law can be inferred only where there is enactment of a later law which had the power to override the earlier law and is totally inconsistent with the earlier law and the two laws cannot stand together. If the later law is not capable of taking the place of the earlier law, and for some reason cannot be implemented, the earlier law would continue to operate. To such a case, the rule of implied repeal may result in a vacuum which the law making authority may not have intended."

The above observations made by the Hon'ble Apex Court makes it very clear that the implied repeal cannot be readily inferred and mere provision of an additional remedy by a new Act would not take away an existing remedy. Further the implied repeal of an earlier law can be inferred only where there is enactment of a later law which had the power to override the earlier law and is totally inconsistent with the earlier law and the two laws cannot stand together. The registration of marriages under H.M.Act and under the RHMK Rules, not just provides a provision for registration of only those marriages which have been contracted in the Karnataka State, but, it also provides for registration of marriages in such place in which the bridegroom or the bride ordinarily resides. This

is clear in Rule 4(1) of RHMK Rules, whereas, Section 3 of KMRM Act confines the scope of said Act only with respect to the marriages contracted in the State on or after the appointed day. However, the said KMRM Act does not confine the registration of marriages only for Hindu marriages, but, it says that it is applicable to every marriage that are contracted in the State.

31. Therefore, the provisions for registration of marriage (in the instance case, Hindu marriage) under KMRM Act would not in any way annul or invalidate a Hindu marriage registered under H.M.Act and RHMK Rules. Since the registration of marriage under H.M.Act is confined only for registration of Hindu marriages, whereas, the KMRM Act is of a wide scope enabling the registration of every marriage contracted in the State, the registration of marriage under KMRM Act so far as Hindus are concerned can be an additional provision for registration of their marriage. As such, it would not take away the facility of registering the marriage under H.M.Act and the RHMK Rules. Further, as submitted by learned State Public Prosecutor, the State Government has not repealed the RHMK Rules after bringing into force the KMRM Act and the Registration of Hindu Marriages (Karnataka)(Amendment) Rules, 1999. As such, when the very State Government has not repealed its previous Rules subsequent to introducing KMRM Act and framing Rules thereunder and when there is no inconsistency between the provisions relating to registration of marriages under H.M.Act with that of KMRM Act and the Rules framed thereunder, as submitted by learned State Public Prosecutor, it cannot be held that RHMK Rules has stood repealed impliedly. As such, the argument of learned Amicus Curiae on the said lines is not acceptable.

32. At this juncture, it also cannot be ignored that Section 8 of KMRM Act would not invalidate the marriage merely because the said marriage is not registered under the said Act. Section 8 of the KMRM Act reads as below :

" 8. Non-registration not to invalidate the marriage.- No marriage contracted in the State shall be deemed to be invalid solely by reason of the fact that it was not registered under this Act or that the memorandum was not delivered or sent to the Registrar or that such memorandum was defective, irregular or incorrect."

33. Learned Amicus Curiae for the petitioner also contended that the Marriage Certificate at Ex.P-2 is a suspicious document, for the reason that, it does not bear the State Emblem though prescribed in Form II-A under RHMK Rules.

34. The RHMK Rules prescribes the Forms, whereunder with respect to Rule 4(5), a format for Certificate of Registration of Marriage is prescribed at Form II-A. The said format includes a State Emblem on the top of the said Certificate of Registration of Marriage. No doubt, in the instant case, Ex.P-2 though contains all other descriptions given in the format, but, it lacks an image of State Emblem printed on the top of the certificate. However, the authenticity of the said certificate has not been disputed in the trial court by the accused side. Therefore, merely because there is no image of State Emblem printed on Ex.P-2 and since it contains all other necessary details, including the title showing it as the certificate issued by Government of Karnataka, and since it bears the Rubber Stamp of Marriage Officer, including round seal of his office with the signature of the Marriage Officer, the said certificate cannot be held to be invalid. As such, the said argument of learned

Amicus Curiae is also not acceptable. On the other hand, the Marriage Certificate at Ex.P-2 further supports the evidence of PW-1 and PW-2 that marriage of the complainant with the accused was registered with the Registrar of Marriages vide Ex.P-

2. The said certificate certifies that the marriage was solemnized between the complainant and the accused on 3.2.2006 and was registered before the Registrar of Marriages on 21.3.2007.

Apart from the registration of marriage and the Certificate of Registration of Marriage at Ex.P-2, as observed above, the performance of the marriage between the complainant and the accused has been clearly established and proved by the prosecution through its witnesses, more particularly, through PW-1, PW-2 and PW-6. As observed above, their evidence is further supported by the evidence of PW-5, the panch witness for seizure panchanama of the marriage photographs at Exs.P-6 to P-8. Thus, the prosecution could able to establish beyond reasonable doubt that the complainant is the legally wedded wife of the accused.

35. The next question would be whether the prosecution has proved that accused has committed an offence punishable under Section 498A of IPC. The evidence led by the prosecution, particularly of PW-1 and PW-2, supported by the marriage invitation card at Ex.P-9, go to show that the accused has contracted a second marriage with one Smt.Jyoti at Mahalingeshwara Temple in Kervashe Village in Karkala Taluk. PW-1 has also stated that the accused had taken away all her gold ornaments on the pretext of meeting the expenses of his sister's marriage and also made the complainant to quit her job which she was pursuing earlier at Tejaswini Hospital.

36. PW-2 also in his evidence, apart from supporting the contention of PW-1, has stated that the accused was abusing his wife i.e., the complainant, in filthy language and also objecting that she was not good to look at. The witness says that he attempted to pacify the accused, still the accused continued the very same behavior with his wife. The witness also gave an instance of the date 16.5.2007 when the accused is said to have left the house abusing his wife and scolding her to go and die somewhere. PW-2 also stated that prior to the said date, the accused had physically assaulted the complainant several times.

The said evidence of PW-1 and PW-2 could not be shaken in their cross-examination and their evidence inspires confidence to believe. However, the accused admittedly has denied his marital relationship with the complainant. All these aspects clearly go to prove that accused has subjected his wife i.e., the complainant to cruelty attracting Section 498A of IPC. Since both the trial Court, as well the Sessions court have found the accused guilty of the alleged offences, I do not find any illegality, irregularity or inconsistency in their finding.

37. For the proven guilt under Section 498A of IPC, the accused was sentenced to undergo simple imprisonment for a period of one year and to pay a fine of `5,000/- and in default of payment of fine, to undergo further imprisonment for a period of two months. Considering the proven guilt and the circumstances of the case, the said sentence ordered by the trial Court, which is confirmed by the Sessions Court, cannot be considered as disproportionate or exorbitant. As such also, the impugned judgments do not warrant any interference at the hands of this Court.

38. Accordingly, I proceed to pass the following order:

ORDER The Criminal Revision Petition is dismissed.

Registry to transmit a copy of this judgment along with trial Court and Sessions Court records to the concerned Courts without delay.

The Court while acknowledging the service rendered by the learned Amicus Curiae for the petitioner Smt.P.V.Kalpana, recommends honorarium of a sum of not less than `5,000/- to her payable by the Registry.

Sd/-

JUDGE BMV*/bk